

JUDGMENT SHEET
PUNJAB SUBORDINATE JUDICIARY
SERVICE TRIBUNAL, LAHORE.
JUDICIAL DEPARTMENT

Service Appeal No. 27 of 2000.

(Tahir Jamil Butt vs The Lahore High Court,
Lahore through its Registrar)

and

Service Appel No. 43 of 2002.

(Tahir Jamil Butt vs. The Registrar, Lahore High Court, Lahore)

J U D G M E N T

Date of hearing.	07.10.2022.
Appellant by	Mr. Khalid Maan, Advocate.
Respondent by	M/s Ahtisham-ud-Din Khan, Nauman Sarwar, M. Mahmood Chaudhary and Sardar Azeem Afrasiab, Advocates.

MIRZA VIQAS RAUF, J./CHAIRMAN:- We intend to decide the subject appeal and Service Appeal No.43 of 2002 through this single judgment as both these appeals are connected and dependent on each other.

2. The appellant was appointed as Civil Judge in the year, 1983 and he served as such till his dismissal. In the last phase of his career, the appellant was posted in District Chakwal fromwhere he was transferred to Rawalpindi. In the meanwhile, a resolution was moved in the District Bar Chakwal against Mr. Muhammad Tariq Chaudhry, Civil Judge against his conduct and reputation as a judicial officer. During the proceedings, the President of the Bar included the name of the appellant as an agenda item. Finally, the resolution was passed with majority on 12.03.1995. On receipt of resolution from the District Bar, Chakwal, a preliminary inquiry

was initiated by the orders of Hon'ble Chief Justice. Mr. Iftikhar Ahmad Cheema, the then District & Sessions Judge, Chakwal held the inquiry, which was placed before the Administration Committee for consideration. After taking into consideration the inquiry report, the Administration Committee in its meeting held on 28.10.1996 decided to initiate proceedings under the Punjab Civil Servants (Efficiency & Discipline) Rules, 1975 and the appellant was confronted with the following charges:-

1. *That while posted as Civil Judge at Chakwal during the period 9.4.91 to 30.4.94 you had the persistent reputation of being corrupt.*
2. *That you were living beyond means.*
3. *That you had been deciding the cases for extraneous considerations.*
4. *That you had been passing consent decrees in cases where State land was involved by extorting bribe and without affixation of court fees.*
5. *That you had been deciding the cases without caring for law, rules and procedure.*
6. *That you had been maintaining a car without prior permission of the High Court.*
7. *That you had purchased two squares of land in district Sialkot, from the bribe money which you collected during your stay at Chakwal.*

On the basis of charge sheet, the departmental proceedings were initiated, wherein pro and contra to the charges, evidence was produced and finally the inquiry officer, holding the appellant guilty of most of the charges, recommended the imposition of major penalty. The Authorized Officer also concurred with the proposed penalty.

3. The appellant was then afforded personal hearing and the hearing officer also adopted the same view; as a sequel whereof, by way of order dated 08.07.2000, the appellant was dismissed from service with immediate effect.

4. The appellant though preferred his departmental appeal, but of no avail, hence, this appeal in terms of Section 5 of the Punjab Subordinate Judiciary Service Tribunal Act, 1991.

5. In connected appeal (S.A.43 of 2002), the appellant has challenged the order dated 30.07.2002, whereby his representation was rejected against the adverse remarks recorded in his annual confidential report.

6. Learned counsel for the appellant contended that the appellant has served the District Judiciary with unblemished record. He added that the appellant has been made victim of personal liking and disliking. Emphasized that the departmental inquiry was not conducted in a fair and transparent manner. It is also contended that most of the charges though have not been proved against the appellant, but he had been awarded major penalty, which is not sustainable.

7. Conversely, this appeal is resisted by the learned counsel representing the Department on the ground that the appellant does not deserve any leniency, as he did not earn good reputation as a judicial officer and charges against him stood proved without any doubt.

8. Heard. Record perused.

9. We have noticed that previously the appeal was dismissed by the Tribunal vide judgment dated 29.05.2015 as having become infructuous on the ground that during pendency of the appeal, the appellant got retired. The judgment was assailed through Civil Petitions No.1566-L and 1599-L of 2015, which were allowed by way of order dated 21.12.2020 and matter was remanded to this Tribunal with the following observations:-

“2. In the present case, learned counsel points out that the petitioner was dismissed from service after having rendered 18 years of service. He can still avail retirement benefits if his punishment is reduced to compulsory retirement.

*3. We notice that the petitioner’s appeal was not heard on merits by the learned Punjab Subordinate Judiciary Service Tribunal (“**Tribunal**”) on the presumption that no relief could be granted to the petitioner. There is a point of*

distinction between the facts of the instant case from those in the judgment quoted by the impugned judgment. There the penalty had already been converted to compulsory retirement and for that reason retirement benefits were available to the respondent-employee in that case. In the present case, the petitioner stands deprived of retirement benefits due to his dismissal from service.

4. *The learned counsel for the petitioner accordingly submits that if the punishment imposed is converted to compulsory retirement, the petitioner would be entitled to receive some financial benefits. Such a course of action would require the consideration of the merits of the case. We are not in a position to consider that without the same having been examined by the learned Tribunal. In view of substantial evidence on record regarding culpability of the petitioner, the question requiring determination with reference to the merits is not whether the petitioner is innocent or guilty but whether in the circumstances of the case, the misconduct committed by the petitioner deserves a lesser penalty. To consider this question would be in the interest of justice. Accordingly, we remand this matter to the learned Tribunal to adjudicate the quantum of punishment that is liable to be awarded to the petitioner.*

Both these petitions are disposed of in the above terms.”

10. Before pondering upon any other issue, it is observed that on receipt of resolution from the District Bar Association, Chakwal, the Hon’ble Chief Justice directed holding of preliminary inquiry against the appellant by Mr. Iftikhar Ahmed Cheema, the then District & Sessions Judge, Chakwal. Thereafter, the matter was placed before the Administration Committee by the orders of the Hon’ble Chief Justice for consideration, wherein it was decided to initiate proceedings against the appellant under the Punjab Civil Servants (Efficiency & Discipline) Rules, 1975 and appointed Justice Ihsan-ul-Haq Chaudhry as Authorized Officer. On receipt of file, the Authorized Officer appointed Mian Muhammad Jehangir, District & Sessions Judge, Narowal as Inquiry Officer. On frequent transfer of the Inquiry Officer, he was changed and in his place Malik Mushtaq Ahmed, learned District Judge, Rawalpindi was appointed as Inquiry Officer. The appellant was confronted to the above-referred charge sheet upon which the departmental inquiry was started. The Inquiry Officer, after recording evidence of both the sides and

appreciating the material concluded that except charges No.4 and 7, remaining charges stand established against the appellant and thus recommended imposition of major penalty. After completion of inquiry, the matter was placed before the Authorized Officer.

11. We have noticed that the Authorized Officer also concurred with the recommendations of the Inquiry Officer and held that the appellant is guilty of charges No.1,2,3,5 & 6 and recommended imposition of major penalty of dismissal from service. The appellant was then afforded an opportunity of personal hearing before Justice Mian Nazir Akhtar (as he then was). After conducting personal hearing, it was concluded that charges No.1, 3 and 5 stand proved against the appellant and he deserves major penalty of dismissal from service. We have also analyzed the available material wherefrom we have gathered that ample material is available against the appellant to prove the charges of misconduct against him. Needless to observe that for a Judge, it is the reputation which matters heavily. A Judge can earn the good reputation after spending years but he can loose it in a blink which then never returns. A Judge thus has to jealously guard his reputation. There is overwhelming material against the appellant questioning his integrity and repute as a Judicial Officer.

12. Leaving aside above discussion, even otherwise, in the light of observations recorded by the Hon'ble Supreme Court of Pakistan in the order dated 21.12.2020, no room left to further ponder upon the question of innocence of the appellant, as the apex Court has categorically held that the question requiring determination with reference to the merits is not whether the appellant is innocent or guilty but whether in the circumstances of the case, the misconduct committed by the appellant deserves a lesser penalty. For this sole reason, the matter was remanded to this Tribunal.

13. It is trite law that imposition of penalty is within the domain of Inquiry/Authorized Officer, who is fully empowered to impose such

penalty upon its employee on finding him guilty of commission of misconduct as it considered appropriate and conversion of penalty imposed by the Inquiry/Authorized Officer would require strong justifiable reasons for the Tribunal to lessen its gravity. The powers of the Tribunal to modify the punishment imposed by the Inquiry/Authorized Officer are neither unbridled nor unlimited.

14. A Court or Tribunal should ordinarily avoid to substitute its own findings with that of the departmental authority, unless it appears that the quantum of punishment is structured on unreasonable, irrelevant, extraneous considerations or at the face of it against the law. Needless to observe that the concept of punishment to a delinquent public servant is founded on the principle of retribution, deterrence or reformation. The Court or Tribunal, after being convinced with the findings of the departmental authority with regard to the guilt of the public servant normally has to concur with the quantum of punishment, unless it alarmingly does not commensurate with the charge/charges. Guidance in this respect can be sought from *DIVISIONAL SUPERINTENDENT, POSTAL SERVICES, FAISALABAD and others vs. MUHAMMAD ZAFARULLAH (2021 SCMR 400)*. The relevant extract from the same is reproduced hereinbelow:-

“7. There is no cavil with the proposition that under section 5 of the Service Tribunals Act, 1974 the Tribunal enjoys powers to modify any order passed by the departmental authorities. However, such power is required to be exercised carefully, judiciously and after recording cogent reasons for the same in appropriate cases keeping in view and considering the specific facts and circumstances of each case. In the instant case; the penalty in question had been imposed upon by the Respondent by the departmental authorities on the basis of established charges, in accordance with law and the relevant rules. In these circumstances, we are at a loss to understand how and from where the Tribunal derived the authority to exercise a power in favour of the Respondent in an arbitrary, unstructured and whimsical manner without recording any reasons. We have found the exercise of jurisdiction by the Tribunal to be wholly without any lawful authority whatsoever specially so where no reasons let alone cogent have been assigned for exercise of jurisdiction in this manner. Reference in this regard may be made to a recent judgment

of this Court involving identical questions of law reported as Chief Postmaster, Faisalabad v. Muhammad Afzal (2020 SCMR 1029).

8. All Courts/Tribunals seized of matters before them are required to pass orders strictly in accordance with the parameters of the Constitution, the law and the rules and regulations framed under the law. No Court has any jurisdiction to grant arbitrary relief without the support of any power granted by the Constitution or the law. This basic and fundamental principle of jurisprudence appears to have eluded the attention of the Tribunal which has clearly exceeded its jurisdiction in granting relief to the Respondent”.

To this effect, reference can also be made to DIRECTOR GENERAL, DIRECTORATRE GENERAL OF TRAINING AND RESEARCH (INLAND REVENUE), LAHORE and another vs. IJAZ YOUNAS (2021 SCMR 710), GOVERNMENT OF PAKISTAN, REVENUE DIVISION, FEDERAL BOARD OF REVENUE through Chairman, Islamabad and another vs. NAWAZ ALI SHEIKH (2020 SCMR 656), GOVERNMENT OF KHYBER PAKHTUNKHWA through Capital City Police Officer Peshawar and others (2020 SCMR 981) and CHIEF POSTMASTER FAISALABAD, GPO and another vs. MUHAMMAD AFZAL (2020 SCMR 1029).

15. We have noticed that the appellant was proceeded departmentally on account of serious charges of misconduct and after holding preliminary inquiry, he was confronted with a regular departmental inquiry, which followed the opportunity of personal hearing, wherein most of the charges levelled against him were duly established. Needless to observe that charges are very serious and keeping in view the seriousness of the charges, the appellant does not deserve any leniency.

16. For the foregoing reasons, we are in agreement that this appeal has no merits as such and it is dismissed accordingly.

(Muhammad Sajid Mehmood Sethi)
Member

(Mirza Viqas Rauf)
Chairman

Approved for reporting

Member

Chairman